

An Act

ENROLLED SENATE
BILL NO. 1441

By: Hines of the Senate

and

West (Josh) of the House

An Act relating to critical infrastructure; amending 3 O.S. 2021, Section 322, which relates to prohibited unmanned aircraft; imposing criminal liability for violations; and providing an effective date.

SUBJECT: Critical infrastructure

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 3 O.S. 2021, Section 322, is amended to read as follows:

Section 322. A. As used in this section:

1. "Critical infrastructure facility" means:

- a. one of the following, if completely enclosed by a fence or other physical barrier that is obviously designed to exclude intruders, or if clearly marked with a sign or signs that are posted on the property, are reasonably likely to come to the attention of intruders, and indicate that entry is forbidden or flight of unmanned aircraft without site authorization is forbidden:

- (1) a petroleum or alumina refinery,

- (2) an electrical power generating facility, substation, switching station or electrical control center,
- (3) a chemical, polymer or rubber manufacturing facility,
- (4) a water intake structure, water treatment facility, wastewater treatment plant or pump station,
- (5) a natural gas compressor station,
- (6) a liquid natural gas terminal or storage facility,
- (7) a telecommunications central switching office,
- (8) wireless telecommunications infrastructure, including cell towers,
- (9) a port, railroad switching yard, trucking terminal or other freight transportation facility,
- (10) a gas processing plant, including a plant used in the processing, treatment or fractionation of natural gas or natural gas liquids,
- (11) a transmission facility used by a federally licensed radio or television station,
- (12) a steelmaking facility that uses an electric arc furnace to make steel,
- (13) a facility identified and regulated by the United States Department of Homeland Security Chemical Facility Anti-Terrorism Standards (CFATS) program,
- (14) a dam that is regulated by the state or federal government, or

(15) a natural gas distribution utility facility, including, but not limited to, pipeline interconnections, a city gate or town border station, metering station, aboveground piping, a regulator station and a natural gas storage facility, or

b. any aboveground portion of an oil, gas, hazardous liquid or chemical pipeline that is enclosed by a fence or other physical barrier that is obviously designed to exclude intruders;

2. "Dam" means any barrier, including any appurtenant structures, that is constructed for the purpose of permanently or temporarily impounding water; and

3. "Unmanned aircraft" means an aircraft without occupants that is flown by a pilot via a ground control system or autonomously through use of an onboard computer and other additional equipment necessary to operate the aircraft and includes unmanned aircraft commonly called drones.

B. Except as provided in subsection C of this section, a person shall not intentionally or knowingly:

1. Operate an unmanned aircraft over a critical infrastructure facility if the unmanned aircraft is less than four hundred (400) feet above ground level;

2. Allow an unmanned aircraft to make contact with a critical infrastructure facility, including any person or object on the premises of or within the facility; or

3. Allow an unmanned aircraft to come within a distance of a critical infrastructure facility that is close enough to interfere with the operations of or cause a disturbance to the facility.

C. This section shall not apply to conduct committed by:

1. The federal government, the state or a political subdivision of the state;

2. A person under contract with or otherwise acting under the direction or on behalf of the federal government, the state or a political subdivision of the state;

3. A law enforcement agency;

4. A person under contract with or otherwise acting under the direction or on behalf of a law enforcement agency;

5. An owner or operator of the critical infrastructure facility;

6. A person under contract with or otherwise acting under the direction or on behalf of an owner or operator of the critical infrastructure facility;

7. A person who has the prior written consent of the owner or operator of the critical infrastructure facility;

8. The owner or occupant of the property on which the critical infrastructure facility is located or a person who has the prior written consent of the owner or occupant of that property; or

9. An operator of an unmanned aircraft that is being used for a commercial purpose, if the operator is authorized by the Federal Aviation Administration to conduct operations over that airspace.

D. Any person in violation of this section shall be subject to the provisions of Section 1792 of Title 21 of the Oklahoma Statutes and may be civilly liable for damages to the critical infrastructure facility to include, but not be limited to, damage to property, the environment or human health.

SECTION 2. This act shall become effective November 1, 2026.

Passed the Senate the 17th day of February, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 28th day of April, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____